

25STLC00915 25STLC00915

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-14

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Case Number: 25STLC00915 Hearing Date: September 14, 2026 Dept: 25

HEARING DATE: Mon., September 14, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Amica

Mutual Insurance Company v. Ortiz, et al.

COMP. FILED: 02-04-25

CASE NUMBER: 25STLC00915

NOTICE: OK

PROCEEDINGS: MOTION

TO VACATE DISMISSAL

MOVING PARTY: Plaintiff Amica Mutual Insurance Company

RESP. PARTY: None

MOTION TO VACATE

DISMISSAL

(Code Civ. Proc., § 473(b))

TENTATIVE RULING:

The Court

GRANTS Amica Mutual Insurance Company's motion to vacate the court-ordered dismissal for failure to appear at trial on August 4, 2026.

The August

4, 2026 dismissal is hereby SET ASIDE AND VACATED.

SERVICE:

☒ [X]

Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ [X]

Correct Address (CCP §§ 1013, 1013a) OK

☒ [X]

16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of September 9, 2026 ☐ []

Late ☒ [X] None

REPLY: None

filed as of September 9, 2026 ☐ [] Late ☒ [X]

None

ANALYSIS:

Amica Mutual Insurance Company filed this subrogation action against Adriel Dominick Ortiz and Robert Ortiz and obtained defaults against them in July 2025.

Amica failed to file a default judgment package as to the Ortizes and failed to appear for the August 4, 2026 non-jury trial. The Court ordered Amica's complaint dismissed without prejudice for failure to prosecute.

Amica now moves to have the dismissal vacated pursuant to Code of Civil Procedure section 473, subdivision (b)'s mandatory attorney-fault provision.

A

motion pursuant to the mandatory relief provision of Code of Civil Procedure section 473, subdivision (b), must be (1) timely, (2) in proper form, and (3) accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).) A court must grant relief if

the party satisfies those requirements, unless the court finds that the default or dismissal was not actually caused by the attorney's fault. (Ibid.)

Amica's motion, filed August 10, 2026, satisfies each of those requirements. Its counsel declares that the failure to appear was the result of counsel's "inadvertence and mistake" because the August 4, 2026 non-jury trial date "was never entered into [his] firm's calendar system."

The Court

GRANTS Amica's motion. The August 4, 2026 dismissal is hereby SET ASIDE AND VACATED.

The Court ORDERS Amica to SHOW CAUSE, on Monday, November 16, 2026 at 9:30 a.m., why default judgment has not been entered in this action.